

THE CONSTITUTION (THIRTY-SEVENTH AMENDMENT) ACT, 1975

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Constitution and Amendments

THE CONSTITUTION (THIRTY-SEVENTH AMENDMENT) ACT, 1975

India

THE CONSTITUTION (THIRTY-SEVENTH AMENDMENT) ACT, 1975

Act 37 of 1975

Published in Gazette of India on 19 March 1975

Commenced on 3 May 1975

[This is the version of this document from 19 March 1975.]

[Note: The original publication document is not available and this content could not be verified.]

Statement of Objects and Reasons appended to the Constitution (Thirty-seventh Amendment) Bill, 1975 which was enacted as the Constitution (Thirty-seventh Amendment) Act, 1975

STATEMENT OF OBJECTS AND REASONS

The Union territory of Arunachal Pradesh is at present administered through a Chief Commissioner. It has a Pradesh Council, consisting mostly of representatives of Zila Parishads, which functions as an advisory body on important matters relating to the administration of the Union territory. Some members of the Pradesh Council are also associated with the Chief Commissioner in the day-to-day administration as Counsellors. It is proposed to replace the Pradesh Council by a Legislative Assembly and the Counsellors by a Council of Ministers, as in certain other Union territories specified in article 239A of the Constitution. The Bill, therefore, seeks to include Arunachal Pradesh in that article.

2.

Under article 240 of the Constitution, the President is empowered to make regulations for the Union territory of Arunachal Pradesh. With the Constitution of a Legislative Assembly for the Union territory, it is proposed to provide that, as in the

case of other Union territories with Legislatures, this power may be exercised only when the Assembly is either dissolved or its functioning remains suspended. The Bill seeks to amend article 240 also to achieve this object.

An Act further to amend the Constitution of India.

BE it enacted by Parliament in the Twenty-sixth Year of the Republic of India as follows:-

1.

Short title.-

This Act may be called the Constitution (Thirty-seventh Amendment) Act, 1975.

2. Amendment of article 239A.-

In article 239A of the Constitution, in clause (1), for the words "Pondicherry and Mizoram", the words "Pondicherry, Mizoram and Arunachal Pradesh" shall be substituted.

3.

Amendment of article 240.-

In article 240 of the Constitution, in clause (1), in both the provisos, for the words "Pondicherry or Mizoram", the words "Pondicherry, Mizoram or Arunachal Pradesh" shall be substituted.

[The Constitution (Thirty-Seventh Amendment) Act, 1975, dealt with the reorganization of the legislative and administrative wing of Arunachal Pradesh. Part VIII of our constitution deals with The Union Territories. By this amendment to Article 239A and Article 240, local legislatures and council of ministers were provided for Arunachal Pradesh.

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